

POLICY ON PREVENTION, PROHIBITION AND REDRESSAL OF SEXUAL HARASSMENT AT THE WORKPLACE

(Framed in accordance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 and Rules, 2013)

1. Introduction

- This Policy is framed in accordance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ('Act') and the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013 ('Rules').
- The purpose of this Policy is to provide a safe working environment free from sexual harassment, to set out the mechanism for prevention and redressal of complaints, and to ensure compliance with the Act and the Rules.

2. Applicability

- This Policy applies to all employees of Frisone Infotech Private Limited, whether employed on a regular, temporary, ad hoc, contractual or daily wage basis, including apprentices, interns, trainees, volunteers, and persons engaged through contractors or agents.
- This policy extends to all workplaces of the Company as defined under Section 2(o) of the Act, including offices, branches, units, and any place visited during the course of employment.

3. Definition of Sexual Harassment

- Physical contact and advances.
- Demand or request for sexual favours.
- Making sexually coloured remarks.
- Showing pornography.
- Any other unwelcome physical, verbal or non-verbal conduct of a sexual nature.
- Circumstances such as threats, intimidation, hostile work environment, or humiliating treatment may also amount to sexual harassment.

4. Internal Complaints Committee (ICC)

- The Company has constituted an Internal Complaints Committee ('ICC') in accordance with Section 4 of the Act.
- The ICC consists of a Presiding Officer (woman employee at senior level), employee members, and one external member familiar with issues relating to sexual harassment.

- At least half of the members shall be women.
- The ICC members shall hold office for a period not exceeding three years.

5. Complaint Mechanism

- An aggrieved woman may make a written complaint within three months from the date of the incident.
- Where the complaint cannot be made in writing, assistance shall be provided by the ICC.
- The ICC may extend the complaint period by another three months for valid reasons.
- Legal heirs or prescribed persons may file complaints on behalf of the aggrieved woman in special circumstances.

6. Conciliation

- Before inquiry, the ICC may attempt conciliation at the request of the aggrieved woman.
- No monetary settlement shall be made as a basis of conciliation.

7. Procedure for Inquiry

- The ICC shall conduct inquiry in accordance with applicable service rules and principles of natural justice.
- Inquiry shall be completed within ninety days.
- Both parties shall be given fair opportunity to be heard.
- The ICC shall have powers similar to a civil court regarding attendance and production of documents.

8. Interim Relief

- During inquiry, the ICC may recommend transfer, leave up to three months, or any other appropriate relief to the aggrieved woman.
- The Company shall implement recommendations and report compliance.

9. Inquiry Report and Action

- The ICC shall submit its findings within ten days of inquiry completion.
- If allegations are proved, disciplinary action and compensation recommendations may be made.
- The Company shall act upon recommendations within sixty days.

10. False or Malicious Complaints

- Malicious complaints or forged evidence may attract disciplinary action.
- Inability to substantiate a complaint shall not by itself attract action.

11. Confidentiality

- Identity of parties, witnesses, proceedings, recommendations, and actions shall remain confidential.

- Violation of confidentiality obligations shall attract penalties under the Act.

12. Duties of the Company

- Provide a safe working environment.
- Display penal consequences of sexual harassment and ICC constitution order.
- Conduct workshops and awareness programs regularly.
- Provide assistance and facilities to the ICC.
- Treat sexual harassment as misconduct under service rules.

13. Annual Report

- The ICC shall prepare an annual report as required under the Rules.
- The Company shall disclose required information in its annual report.

14. Amendment

- This policy may be amended from time to time in accordance with amendments to the Act or Rules.

Adopted by the Board of Directors

Name: Pratik P Modi

Designation: CEO

Company: Fristine Infotech Private Limited